

Deposition of Nolan Rusk

Taken: September 18, 2025 **Excerpts filed:** November 21, 2025 **Action:** Mara Ellison v. Officer Nolan Rusk, No. SYN-WDVA-25-CV-0733

These fictional excerpts preserve Rusk's testimony concerning training, dispatch information, the visually obstructed contact, one drive-stun cycle, and his qualified-immunity position. The reporter condensed routine appearances and exhibit handling. Nothing in the transcript is a finding that his disputed perceptions were accurate.

Q. State your name and employment on February 3, 2025.

A. Nolan Rusk. I was a patrol officer with the Alder Creek Police Department.

Q. How long had you served then?

A. About six years, including academy and field training. I had responded to welfare and crisis calls and carried a department conducted-energy weapon.

Q. Were you trained that drive-stun use causes substantial pain?

A. Yes. It is a force option, not a communication tool. A drive-stun application is intended to gain control through pain and must be tied to the circumstances.

Q. Did you understand that a mental-health condition alone does not make someone dangerous?

A. Yes. Behavior and immediate safety conditions matter. A welfare call should begin with assessment and de-escalation when feasible.

Policy and force-decision training

Q. What factors did department training require before electronic force?

A. The seriousness of any offense, immediate threat, active resistance, flight, access to weapons or equipment, other people present, distance, and whether alternatives were feasible. Crisis indicators were also relevant.

Q. Did policy authorize a drive-stun cycle for verbal disagreement alone?

A. No. It did not authorize one merely because a person questioned an officer or wanted space.

Q. What about noncompliance?

A. Noncompliance can justify some control, but the amount depends on risk. A person simply refusing a direction is different from someone striking or reaching for a weapon.

Q. Were warnings required?

A. When feasible. If an immediate movement creates a close equipment threat, an officer may not have time for a formal warning.

Q. Was only one cycle permitted automatically?

A. No number is automatically reasonable. The officer must reassess. In this event I used one approximately five-second drive-stun cycle and stopped.

Q. Did your training tell you to distinguish fact from inference in a report?

A. Yes. I should say what I perceived and what action I took. I agree that a later camera limitation must be disclosed rather than described as if it showed something hidden.

Dispatch information

Q. What did Dispatcher Lena Cho tell you?

A. Iris Ellison wanted a welfare check for Mara at Larkspur Court. The notes mentioned missed medication or a mental-health crisis, no known weapon, no assault, and no criminal complaint.

Q. Did you receive information that Mara threatened suicide or another person?

A. No specific threat was dispatched. It was concern about her condition and distress.

Q. Was she wanted on a warrant?

A. Not to my knowledge. I did not go there to arrest her for a crime.

Q. Did the no-weapon report matter?

A. Yes. It lowered the initial information about danger. It did not guarantee that no object or later equipment risk could exist, but I began without a report of a weapon.

Q. Did Iris ask for a calm approach?

A. That was in the narrative, including that multiple people talking could make things worse. I tried to speak first while Vega stayed back.

Q. Before first contact, did any update report violence, flight, or a weapon?

A. No.

Q. Do you agree the governmental purpose was protective and noncriminal at arrival?

A. Yes. My position is that the safety circumstances changed during physical contact, not that the original call was criminal.

Arrival and first observations

Q. When did you arrive?

A. Approximately 19:52:14. My camera was active. Vega arrived just afterward.

Q. What did Iris say in the lot?

A. She indicated Building C and asked us to be calm. I directed her to stay back.

Q. Describe Mara at 19:52:48.

A. She was seated near C-12. Her hands were initially visible and empty. A phone and keys were near the wall.

Q. Did she threaten you?

A. Not verbally. She challenged why we were there and asked for space.

Q. Did she stand or run when you approached?

A. No. She shifted while seated. I was concerned she could move toward the stair opening or become harder to assist, but she had not fled.

Q. Did you see a weapon on or near her?

A. No.

Q. Why did you ask her to stand?

A. I wanted her in a position where I could assess and control the encounter and keep her hands visible. The breezeway was confined.

Q. Do you agree the recording shows another officer available?

A. Vega was present behind me. She was not yet within hands-on distance at the first exchange.

Decision to grasp the wrist

Q. What occurred at 19:53:02?

A. I took Ellison's left wrist and restrained it. I agree the seizure began then, or no later than then.

Q. Why did you make physical contact?

A. She was not following my direction to stand and keep her hands visible, and her attention shifted. I wanted limited control before she moved toward the stairs or another object.

Q. Had she committed a crime by that time?

A. No crime that I was investigating. The purpose remained welfare and safety.

Q. Had she struck you or reached toward your belt before the grasp?

A. No. Those events I report happened after I took the wrist.

Q. Was the initial wrist hold the force challenged on appeal?

A. My understanding is that Ellison does not challenge the lawfulness of initiating the seizure. She challenges the later drive-stun force.

Q. Did your grip cause pain?

A. Ellison said it hurt. I intended a control grip, not an injury, but I accept she experienced pain and later had an abrasion.

Q. Could you have waited for Vega before touching her?

A. In hindsight she was approaching. At the time I thought immediate limited control was appropriate. That answer is separate from why I later used the device.

Pulling and rotation before full obstruction

Q. What did Ellison do after you grasped her?

A. She pulled the wrist toward her body and rotated. I told her to hold still and give me the other hand.

Q. Does the camera show pulling?

A. It shows movement of the restrained arm and rotation. My command says "stop pulling."

Q. Could her movement have been recoil from pain?

A. She says that, and I cannot know her subjective intent. I perceived active effort against my control.

Q. Did pulling alone cause you to activate the device?

A. No. I say the later strike and movement toward my duty belt created the immediate concern.

Q. Where was her free hand at 19:53:05?

A. It appears briefly away from the camera-facing part of my belt, but the bodies were closing and the view changed.

Q. At what time is the image materially obstructed?

A. From 19:53:08 through 19:53:22.

Q. Can you identify a last clear frame that proves what the free hand did inside that period?

A. No. A preceding frame cannot prove a later hidden movement.

Q. Did Ellison try to run down the breezeway before obstruction?

A. No. My asserted threat is close contact and equipment access, not flight at that point.

Claimed forearm strike

Q. Describe the contact you call a forearm strike.

A. While Ellison twisted, I perceived her free arm or hand come into my forearm with directed force. It was more than the steady pressure of bodies touching.

Q. Did you see a fist?

A. I cannot say I saw a closed fist. The movement was close and fast.

Q. Was there an injury to your forearm?

A. I had temporary tenderness. I did not seek treatment, take an injury photograph, or report lost function.

Q. Does either camera visibly show a hand striking your forearm?

A. No. The relevant area is blocked.

Q. Is the dull sound at 19:53:12 necessarily that strike?

A. I believed it was consistent with the contact, but audio alone cannot identify the source. It could include other contact in the confined area.

Q. Did Vega say she witnessed a strike?

A. No. She says she could not reliably see the hands. I do not claim she corroborates it visually.

Q. Ellison denies intentionally hitting you. Could incidental contact occur while you held and turned with her?

A. It could. My testimony is that I perceived a directed strike, but I recognize a factfinder may hear competing evidence.

Q. Your report classification of active resistance depends partly on your account?

A. Yes. It is not a machine-generated conclusion from the camera.

Claimed movement toward the duty belt

Q. What did you perceive after the forearm contact?

A. I saw or felt her free hand move toward the equipment side of my duty belt. At close range I believed she could reach the energy device, sidearm, or another tool.

Q. Which exact item did she touch?

A. I cannot say she completed a grasp of a specific item. I reacted to movement toward the equipment area.

Q. Was any retention device opened?

A. No. No equipment was removed, and the postincident check found the retention systems closed.

Q. Does the video show her hand at your belt?

A. No. The camera cannot resolve it.

Q. Does the audio establish a reach?

A. I say “stay off it,” but the recording does not show what “it” refers to. That phrase reflects my perception; it is not independent visual proof.

Q. Did Vega see the alleged movement?

A. She could not confirm or exclude it.

Q. Was Ellison carrying a weapon of her own?

A. None was seen or recovered. My concern was access to my equipment.

Q. If no strike and no belt movement occurred, would the immediate threat be different?

A. Yes. If the facts were only unarmed distress and nonthreatening pulling, the safety justification for the device would be materially weaker.

Decision and one drive-stun cycle

Q. When did you activate the device?

A. At approximately 19:53:16. The event log and audio show one cycle ending about 19:53:21.

Q. What mode did you use?

A. Drive-stun contact. I did not fire probes.

Q. Did you issue a clear device warning first?

A. Not a full warning by name. I believed the equipment movement was immediate and used the device while directing Ellison down.

Q. Where did you place it?

A. Against her left lateral torso through or beside the outer clothing. The later record describes two superficial contact marks.

Q. What purpose did you intend?

A. To interrupt the movement, prevent equipment access, and gain control so we could get her down and cuffed.

Q. Did you pull the trigger a second time?

A. No. One approximately five-second cycle only.

Q. Could the cycle cause significant pain?

A. Yes. Ellison cried out, and the device is designed to cause pain in drive-stun use.

Q. Are you claiming the mere fact it was one cycle makes it reasonable?

A. No. I rely on the immediate threat I perceived. Without that factual predicate, cycle count alone would not answer the question.

Descent, handcuffing, and force cessation

Q. What happened during the cycle?

A. I maintained the wrist control and used body position to direct Ellison down. The camera rotated and remained obstructed.

Q. Can you separate how much of her descent resulted from your force, her balance, or the device?

A. Not precisely. They occurred together in a few seconds.

Q. What is visible at 19:53:22?

A. Ellison is at floor level. Vega is moving to control a hand, and I am on the opposite side.

Q. Does that frame show what happened four seconds earlier?

A. No. It shows the aftermath.

Q. When were the cuffs secured?

A. Around 19:53:37. I announced they were on.

Q. Did you strike, kick, or electronically cycle Ellison after she was down?

A. No. Vega and I positioned her hands and cuffed her. There was no second cycle.

Q. Why did Vega tell everyone one person would speak?

A. Ellison was distressed, and reducing simultaneous commands helped after control. That approach could be useful earlier too, but I believed the close threat developed before we could return to communication alone.

Q. Was Ellison taken into criminal custody?

A. No. The scene remained a protective medical response.

Complaints, medical response, and report preparation

Q. What did Ellison report after cuffing?

A. Wrist and shoulder pain and burning at the contact sites. She said she never tried to take anything and pulled because I hurt her.

Q. Did you accept that statement?

A. I documented that she denied my account. I did not agree with it.

Q. What injuries were later identified?

A. A left-wrist abrasion, two superficial contact burns, and a shoulder strain. Imaging found no fracture.

Q. Did you request medical assistance?

A. Yes. I radioed for medical after restraint and disclosed one drive-stun exposure. Paramedic Mateo Cole assessed her, and she went to Alder Creek Regional Medical Center.

Q. Did you charge her with assault or attempting to disarm an officer?

A. No. I prepared no criminal charge. The event disposition remained medical assistance or protective contact.

Q. When did you write your report?

A. I completed it on February 4 after reviewing notes and device information. I reported the strike and equipment movement based on recollection, not because video showed them.

Q. Did Lieutenant Marcus Hale review the force administratively?

A. Yes. Administrative review is not a court finding, and I understand the civil case independently evaluates disputed facts.

Recording limits and Officer Vega's evidence

Q. Do you agree your recording is continuous?

A. Yes. Sergeant Lila Grant's export record shows no deletion or trim.

Q. Then why does it not answer the dispute?

A. Continuity is different from visibility. My sleeve, Ellison's coat, our bodies, and the breezeway blocked the lens between 19:53:08 and 19:53:22.

Q. Does the recording blatantly contradict Ellison's version?

A. It shows she turned and pulled, which she admits. It does not visibly contradict her denial of a strike or reach.

Q. Does Vega's recording contradict her?

A. Not conclusively. Vega's angle does not reliably show the hands either.

Q. Does audio settle whether the pulling posed an immediate threat?

A. No. It captures commands, her pain statement, movement, a contact sound, and the cycle. My testimony explains my perception; the sound itself does not classify the threat.

Q. Are you asking an analyst to generate missing imagery?

A. No. No one should reconstruct pixels that were never recorded.

Q. Can a court assume Ellison's supported facts for a legal question without finding that the recording proves them?

A. I understand that may be the procedure. I preserve my account for any later factfinding.

Assumed-fact question, corrections, and certification

Q. Assume Ellison was unarmed and distressed; committed no crime; did not flee, strike, grab, or reach; posed no immediate danger; and only pulled or failed to comply because the wrist grip hurt. Is that different from your factual account?

A. Yes. That removes the forearm strike and equipment reach I say created an immediate safety exigency.

Q. Can you answer whether a drive-stun cycle was lawful under that assumption without asking an appellate court to believe you instead?

A. Counsel has instructed me not to give a legal conclusion. I understand the court may analyze that assumed version and separately leave credibility unresolved.

Q. Have you reviewed these excerpts?

A. Yes. I correct my rough estimate of arrival from 19:52:10 to the certified 19:52:14. I also clarify that I perceived movement toward the equipment area; I cannot testify that Ellison completed a grasp of a particular item.

Q. Any other substantive correction?

A. No.

The fictional reporter certifies that these selections preserve the testimony, concessions, disputed account, and stated corrections from the September 18 examination. The excerpts were lodged with Rusk's simulated November 21 summary-judgment filing. No actual officer testified. The transcript supplies evidence for an invented record and does not itself resolve force reasonableness, clearly established law, or collateral-order jurisdiction.